

Charan Singh v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 29 August 2023 · 2023:AHC:173829-DB · Writ - C No. 28189 of 2023 · **Writ disposed; instalments to be fixed under clause 6.14**

HEADNOTE

On a writ seeking instalments of Rs. 1,69,724 covered by a recovery certificate, the Division Bench disposed of the petition by directing that an application made to the Executive Engineer within three weeks be considered under clause 6.14 of the U.P. Electricity Supply Code, 2005 and that instalments be fixed within three weeks of receipt.

FACTUAL SUMMARY

A recovery certificate was issued against Charan Singh, and a citation required him to pay Rs. 1,69,724 to the Executive Engineer, Electricity Distribution Division, Dakshinanchal Vidyut Vitran Nigam Ltd., Kasganj. He did not pay. He filed this writ asking the High Court to fix instalments of that amount. Counsel for the Executive Engineer submitted that the petitioner ought to have used the instalment facility in clause 6.14 of the U.P. Electricity Supply Code, 2005. Shown that clause, the petitioner agreed to pay once instalments were fixed under it.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Instalments of recovery dues

HOLDING

A consumer who, after a recovery certificate and citation, seeks instalments in writ is to use clause 6.14 of the U.P. Electricity Supply Code, 2005. If he applies to the Executive Engineer within three weeks, the application shall be considered under that clause, instalments shall be fixed, and the exercise shall be completed within three weeks of receipt. ¶ 1-2

PRINCIPLE TAGS

installment-payment-clause-6.14 The writ for instalments of recovery-certificate dues was disposed by sending the consumer to the Executive Engineer under clause 6.14, with a direction that instalments be fixed within three weeks of a timely application. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE RECOVERY OF RS. 1,69,724 AND THE NUMBER OR PERIODICITY OF INSTALMENTS

The Court did not examine the demand. The schedule was left to the Executive Engineer under clause 6.14. ¶ 1-2